this manner. King Henry 8. being seized of certain lands in right of his Dutchy of Lancaster, made a lease to W. C. by the advice of the counsel of the said dutchy, and under the dutchy seal, for the term of 21 years, and died, after whose death King Edward 6. by like advice made a lease to R. W. of the same lands for the term of 21 years, to commence immediately after the expiration, forfeiture, surrender, or other determination of the first term, the same King Edward 6. then being within the age of 21 years. The question was, if the present Queen shall be bound by this lease made by King Edward 6, or if she shall avoid it by reason of the nonage of the said King Edward 6. And this case was argued in the Dutchy Chamber in the time of Queen Mary, when Sir Edward Waldegrave, Knight, was Chancellor of the Dutchy, on a demurrer upon the point between John Scudamore, plaintiff, and Lady Mary Morgan, late wife of Sir Richard Morgan, Knight, deceased, late Chief Justice of the Common Bench, defendant, upon a lease of lands in the county of Monmouth, parcel of the dutchy: but it was not adjudged in the time of Queen Mary. And the Judges and others above-named now considered first what the common law was in this case, and then what was the purport of the statutes made concerning the dutchy, all which they pursued. **[213]** And this the greatest part of them (as well as Sir Robert Catline, Chief Justice of England, who was now sick) had done twice before in Michaelmas term, in the second and third years of the present Queen, viz. once at the same Serjeant's-Inn, and the other time at Spooner's-Hall, in Fleet-street, being there assembled for the same cause, at which places they had debated the matter at large, and by their several arguments at Spooner's-Hall they had shewn their opinions. And the greatest part of them then, and all of them now assembled, except Ruswel (who had but little time to consider the matter) unanimously agreed that the Queen should not avoid the lease made by King Edward her brother, by reason of his nonage. For first of all they agreed, (a) that by the common law no act which the King does as King, shall be defeated by his nonage. (b) For the King has in him two bodies, viz. a body natural, and a body politic. His body natural (if it be considered in itself) is a body mortal, subject to all infirmities that come by nature or accident, to the imbecility of infancy or old age, and to the like defects that happen to the natural bodies of other people. But his body politic is a body that cannot be seen or handled, consisting of policy and government, and constituted for the direction of the people, and the management of the public-weal, and this body is utterly void of (c) infancy, and old age, and other natural defects and imbecilities, which the body natural is subject to, and for this cause, what the King does in his body politic, cannot be invalidated or frustrated by any disability in his natural body. And therefore his letters-patent, which give authority or jurisdiction, or which give lands or tenements that he has as King, shall not be avoided by reason of his nonage. (d) And hereupon was alledged what Thorp saith in 26 Ass. that "the King's gift shall not be defeated by his nonage, and so have many peers and sages of the realm said." (e) And also it was said, it appears in 6 Ed. 3. that the same King Edward 3. brought a writ of right of a manor, as heir to King Richard, and there it was pleaded that the King was within age, judgment if during his nonage he should be received to this writ, and the exception was not allowed, for which reason the tenant demanded the view and had it. By which cases it appears that the nonage which the King has in his natural body, shall not blemish or defeat the acts or suits which he does or pursues in his body politic.

Further, as to the things which he has in his body natural, they took the law to be, (f) that if the King has land by descent, on the part of his mother or other

(a) H. 1 Ed. 6. Bro. Age, 52. 78. Prerogative, 132. B. N. C. § 373. Kelw. 138. pl. 2. 5 Co. 27 a. 7 Co. 12 a. *Calvin's case.* Co. Litt. 43 a. Pref. to 2 Inst. 1 Rol. Abr. 728 A. 1 Finch. 57. 2 Finch. 82. 3 Bac. Abr. 123. 305. Vin. Abr. tit. Enfant, A. pl. 2. *post* 364 (m).

(b) 7 Co. 10 a. *Calvin's case. post,* 234 (a).

(c) The King is always adjudged in law of full age, and infancy shall not be presumed in him, Crompt. J. C. 134 b. 1 Finch. 57. *post,* 216 (c).

(d) 26 Ass. pl. 54. Fitz. Enfant 15. Bro. Age 34.

(e) M. 6 Ed. 3. 50. pl. 49. Fitz. Droit 24. Age 89. Bro. 34.

(f) S. P. Crompt. J. C. 134. b. 1 Finch 57. 2 Finch 82. *infra* (n).

Digitized by Google